

CITY OF EVANS, COLORADO

ORDINANCE NO. 869-26

AN ORDINANCE ACCEPTING REAL PROPERTY FOR THE PURPOSES OF PUBLIC ROAD RIGHT-OF-WAY

WHEREAS, the City Council of the City of Evans, Colorado, pursuant to Colorado statute, the Evans City Charter, and the Evans Municipal Code, is vested with the authority of administering the affairs of the City of Evans, Colorado; and

WHEREAS, Section 18.03.100 of the Evans Municipal Code authorizes the City Council to accept, by ordinance, rights-of-way within the City limits; and

WHEREAS, the City has received a request from the EPS Group, Inc. (“the Applicant”), being the authorized representative of the Mountain Cement Company, LLC (“the property owner”), to dedicate property, as depicted on Exhibits A and B, attached, for the purposes of public road right-of-way; and

WHEREAS, prior to annexation of the subject property from where the proposed right-of-way will be dedicated, the Weld County Recorded Exemption RECX15-0163 plat, depicted an additional ten (10) feet of future right-of-way extending into the subject property, intended to be dedicated to the City of Evans; and

WHEREAS, the City Council has determined that the right-of-way will serve a public purpose, specifically to support the adjacent County Road 33 / 47th Avenue roadway; and

WHEREAS, the City has determined that the additional road right-of-way will be incorporated into the City street system, as defined by Section 43-2-123 C.R.S.; and

WHEREAS, Section 31-23-107 C.R.S. states that any addition of streets made to the City are public property and the fee title thereto vested in the City; and

**NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE
CITY OF EVANS, COLORADO AS FOLLOWS:**

1. The subject rights-of-way are hereby accepted, dedicated in fee and are designated as public property and shall be designed, constructed, and maintained in accordance with City standards and specifications.
2. The subject rights-of-way shall be shown and labeled on the Mountain Cement Company Minor Subdivision – First Replat as public right-of-way and shall include reference to the approved street name of 47th Avenue, with the following note:

- a. All public road rights-of-way as shown hereon this plat were accepted by City Council Ordinance No. 869-26, per Weld County Clerk and Recorder Reception No. _____, and are dedicated by this plat to the City of Evans.
3. This Ordinance and Exhibits shall be recorded in the records of Weld County, Colorado to evidence the dedication.
4. Severability. If any article, section, paragraph, sentence, clause, or phrase of this Ordinance is held to be unconstitutional or invalid for any reason such decision shall not affect the validity or constitutionality of the remaining portions of this Ordinance. The City Council hereby declares that it would have passed this Ordinance and each part or parts thereof irrespective of the fact that any one part or parts be declared unconstitutional or invalid.
5. Repeal. Existing ordinances or parts of ordinances covering the same matters embraced in this Ordinance are hereby repealed and all ordinances or parts of ordinances inconsistent with the provisions of this Ordinance are hereby repealed except that this repeal shall not affect or prevent the prosecution or punishment of any person for any act done or committed in violation of any ordinance hereby repealed prior to the effective date of this Ordinance.

INTRODUCED AND PASSED AT A REGULAR MEETING OF THE CITY COUNCIL OF THE CITY OF EVANS ON THIS 18th DAY OF AUGUST, 2026.

ATTEST:

CITY OF EVANS, COLORADO

Julie Barnett, City Clerk

BY: _____
Mark C. Clark, Mayor

PASSED AND ADOPTED ON A SECOND READING THIS 1st DAY OF SEPTEMBER, 2026.

ATTEST:

CITY OF EVANS, COLORADO

Julie Barnett, City Clerk

BY: _____
Mark C. Clark, Mayor

EXHIBIT A

A PARCEL OF LAND LOCATED IN LOTS 1 & 2, MOUNTAIN CEMENT COMPANY MINOR SUBDIVISION AND LOT A, RECORDED EXEMPTION NO. 1057-3-4 RE-3237, LOCATED IN THE SOUTHEAST QUARTER OF SECTION 3, TOWNSHIP 4 NORTH, RANGE 66 WEST OF THE 6th P.M., CITY OF EVANS, COUNTY OF WELD, STATE OF COLORADO

DESCRIPTION

A parcel of land, 40 feet in width, located in Lots 1 & 2, Mountain Cement Company Minor Subdivision, recorded as Reception No. 5043502, Weld County Clerk & Recorder, and Lot A, Recorded Exemption No. 1057-3-4 RE-3237, recorded as Reception No. 2982237, Weld County Clerk & Recorder, located in the Southeast Quarter of Section 3, Township 4 North, Range 66 West of the 6th P.M., City of Evans, County of Weld, State of Colorado, being more particularly described as follows:

Considering the east line of the Southeast Quarter of Section 3 as bearing South 00° 02' 02" East, with all bearings contained herein relative thereto:

COMMENCING at the East Quarter corner of Section 3;

THENCE South 00° 02' 02" East, along said east line of the South Quarter of Section 3, a distance of 1165.06 feet to the Northeast corner of said Lot 1, Mountain Cement Company Minor Subdivision, said point being the POINT OF BEGINNING;

THENCE South 00° 02' 02" East, along said east line, a distance of 1409.40 feet to the southeast corner of Lot 2, Mountain Cement Company Minor Subdivision;

THENCE South 89° 24' 43" West, along said south line, a distance of 40.00 feet;

THENCE North 00° 02' 02" West, departing said south line, a distance of 1407.54 feet to the north line of Lot 1;

THENCE North 86° 45' 14" East, along said north line, a distance of 40.06 feet to the POINT OF BEGINNING.

Containing 1.29 acres (56,339 square feet) more or less.

May be subject to easements, rights-of-way, covenants and restrictions of record.

Exhibit attached hereto and made a part hereof.

SURVEYOR'S CERTIFICATE

I, Tharen J. Helgerson, a Colorado Professional Land Surveyor, do hereby certify that this property description was prepared under my personal supervision and checking, that it is true and correct to the best of my knowledge, information and belief and is in accordance with applicable standards of practice. This is not a guaranty or warranty, either expressed or implied. {4 CCR 730-1}



Tharen J. Helgerson
Colorado Professional Land Surveyor No. 38882
For and on behalf of EPS Group, Inc.

Sheet
1
Of 2
Sheets



PROJECT:
1938-002

DATE:
07/22/2026

DRAWN BY:
L. SMITH

CLIENT:
MCC

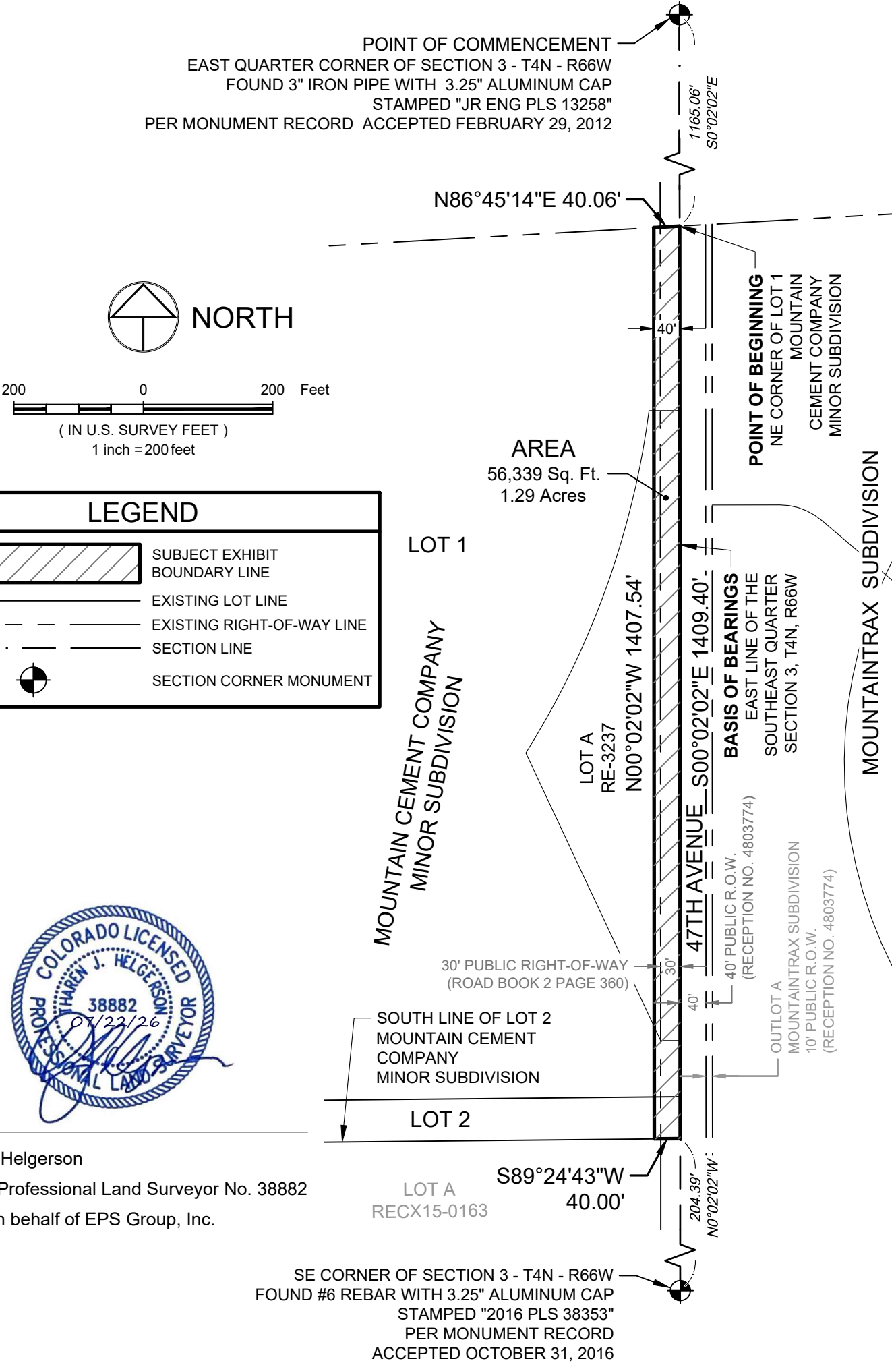
SECTION-TWP-RGE:
S03-T4N-R66W

REVIEW BY:
T. HELGERSON

THIS EXHIBIT IS NOT A
MONUMENTED LAND SURVEY.
IT IS MEANT TO AID IN THE
VISUALIZATION OF THE
ACCOMPANYING WRITTEN
DESCRIPTION. THE WRITTEN
DESCRIPTION SUPERCEDES THE
EXHIBIT DRAWING.

EXHIBIT B

A PARCEL OF LAND LOCATED IN LOTS 1 & 2, MOUNTAIN CEMENT COMPANY MINOR SUBDIVISION AND LOT A, RECORDED EXEMPTION NO. 1057-3-4 RE-3237, LOCATED IN THE SOUTHEAST QUARTER OF SECTION 3, TOWNSHIP 4 NORTH, RANGE 66 WEST OF THE 6th P.M., CITY OF EVANS, COUNTY OF WELD, STATE OF COLORADO



Tharen J. Helgerson
Colorado Professional Land Surveyor No. 38882
For and on behalf of EPS Group, Inc.